Inderpreet Singh vs State Of Nct Of Delhi & Anr on 3 July, 2025

Author: Sanjeev Narula

Bench: Sanjeev Narula

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 1784/2025 & CRL.M.As. 8073-8074/2025
INDERPREET SINGH
Through: Mr. Kamal Garg, Mr. Chirag Ar
Ms. Hansika Airon and Mr.
Advocates.
P-1 through VC.
P-2 & 3 in person.
versus
STATE OF NCT OF DELHI & ANR. ...
Through: Mr. Hemant Mehla, APP for the
State.
SI Seema, PS: Prashant Vi
Mr. Ranjan Sharma, Advoca
2.
R-2 in person.
CORAM:
HON'BLE MR. JUSTICE SANJEEV NARULA
ORDER

% 03.07.2025

1. The present petition filed under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 20231 (formerly Section 482 of the Code of Criminal Procedure, 19732) seeks quashing of FIR No. 06/20183 dated 3rd January, 2018, registered under Sections 498A/406/377/34 of the Indian Penal Code, 18604 at P.S. Prashant Vihar and all other proceedings emanating therefrom.

2. Petitioner No. 1 is the husband of Respondent No. 2. Petitioners No. 2 and 3 are the in-laws of Respondent No. 2. The marriage between Petitioner No. 1 and Respondent No. 2 was solemnized on 10th November, 2016, as per Hindu rites and ceremonies and one child is born from the said marriage, "BNSS"

"Cr.P.C."

"the impugned FIR"

"IPC"

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The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 04/07/2025 at 22:17:05 who has been adopted by another family with the consent of the parties. However, due to matrimonial discord, the relationship between the parties deteriorated and they have been living separately since 30th June, 2017. Several efforts for reconciliation were made but to no avail.

3. Subsequently, Respondent No. 2 filed a complaint against the Petitioners, alleging that they had subjected her to cruelty, which later culminated into the impugned FIR.

4. The present petition is filed on the ground that the dispute between the parties has been amicably settled before the Delhi Mediation Centre, Rohini District Courts and the Petitioner No. 1 and Respondent No. 2 have executed a Settlement Agreement dated 6th October, 2023. As per the Agreement, Petitioner No. 1 agreed to pay a sum of INR 13,25,000/- to Respondent No.2, who has agreed to withdraw all proceedings pending before various Courts. Pursuant to the settlement, Petitioner No. 1 and Respondent No.2 obtained a decree of divorce by mutual consent dated 18th July, 2024, passed by the Family Courts, North-District, Rohini Courts, Delhi.

5. In light of the foregoing, counsel for the parties jointly pray for the quashing of the impugned FIR. Respondent No. 2, who is present before this Court, confirms the receipt of payment as per the Settlement Agreement and gives no objection to the quashing of the impugned FIR. Petitioner No. 1, who is a residing in Canada, has joined the proceedings through the video conferencing mechanism. The parties have duly been identified by the Investigating Officer.

6. The Court has considered the afore-noted facts. Notably, offences under Sections 377 and 498A of IPC are non-compoundable while the offence under Section 406 of IPC is compoundable in certain cases.

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7. It is well-established that the High Courts, in exercise of their powers under Section 528 of BNSS (formerly Section 482 of Cr.P.C.), can compound offences which are non-compoundable on the ground that there is a compromise between the accused and the complainant. In Narinder Singh & Ors. v. State of Punjab & Anr.,5 the Supreme Court laid down guidelines for High Courts while accepting settlement deeds between parties and quashing the proceedings. The relevant observations in the said decision read as under:

> "29. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under Section 482 of the Code while accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings:

29.1. Power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be exercised sparingly and with caution.

29.2. When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in such cases would be to secure:

(i) ends of justice, or

(ii) to prevent abuse of the process of any court.

While exercising the power the High Court is to form an opinion on either of the aforesaid two objectives.

29.3. Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for the offences alleged to have been committed under special statute like the Prevention of (2014) 6 SCC 466 This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 04/07/2025 at 22:17:05 Corruption Act or the offences committed by public servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender.

29.4. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves.

29.5. While exercising its powers, the High Court is to examine as to whether the possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases."

[Emphasis Supplied]

8. Similarly, in the case of Parbatbhai Aahir & Ors. v. State of Gujarat & Anr.,6 the Supreme Court had observed as under:

> "16. The broad principles which emerge from the precedents on the subject, may be summarised in the following propositions:
>
> 16.1. Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice.

The provision does not confer new powers. It only recognises and preserves powers which inhere in the High Court.

16.2. The invocation of the jurisdiction of the High Court to quash a first information report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of jurisdiction for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of Criminal Procedure, 1973. The power to quash under Section 482 is attracted even if the offence is non- compoundable.

16.3. In forming an opinion whether a criminal proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power.

(2017) 9 SCC 641 This is a digitally signed order.

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16.4. While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised (i) to secure the ends of justice, or (ii) to prevent an abuse of the process of any court.

16.5. The decision as to whether a complaint or first information report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated.

16.6. In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are, truly speaking, not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences.

16.7. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing insofar as the exercise of the inherent power to quash is concerned.

16.8. Criminal cases involving offences which arise from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute.

16.9. In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and 16.10. There is yet an exception to the principle set out in propositions 16.8. and 16.9. above. Economic offences involving the financial and economic well-being of the State have implications which lie beyond the domain of a mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance."

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9. It must also be noted that the impugned FIR contains allegations of under Section 377 of IPC against Petitioner No. 1. Considering the gravity of the allegations, the Court has interacted with Respondent No. 2, who states that these allegations were made on account of a misunderstanding and the legal advice she had received at the time of lodging of the FIR. She further states she was suffering from depression at the time and she could not comprehend the purport of these allegations. Nonetheless, she does not wish to continue and prosecute the present FIR.

10. While it is settled that the powers under Section 528 BNSS should not be used for quashing heinous and serious offences, the Co-ordinate Bench of this Court in Rifakat Ali & Ors v. State (Govt. of NCT of Delhi) & Anr.7 has held that where parties have decided to part ways without acrimony against each other, powers under Section 482 Cr.P.C. can be exercised even for an offence under Section 377 of IPC on the ground that the dispute is private in nature. The relevant observations of the said decision read as under:

> "10. A perusal of the three judgments which shows that the Supreme Court has consistently held that the power under Section 482 CrPC should not be used for quashing heinous and serious offences of mental depravity or offences like murder, rape, dacoity etc. since these offences are not private in nature and have a serious impact in society. An offence under Section 377 IPC is a heinous offence and points to the mental depravity of the accused and hence ought not to be quashed by the High Court on the basis of compromise by exercising its jurisdiction under Section 482 CrPC.

11. The present case arises out of matrimonial dispute and the allegation has been made by the wife against the husband. The parties have decided to part ways and get ahead in their lives without

having any acrimony against each other. In the facts and circumstances of the case, this Court is inclined to exercise its powers under Section 482 CrPC even for an offence under Section 377 IPC on the ground that the dispute is private in nature.

decision dated 26th February, 2021 in CRL.M.C. 599/2021 This is a digitally signed order.

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13. It is made clear that this Court is exercising its powers under Section 482 CrPC to quash an offence of Section 377 IPC on the ground that the parties have compromised the matter with each other only because it arises out of a matrimonial dispute, the allegation has been levelled by wife against her husband of committing an offence under Section 377 IPC and the parties have decided to move ahead in life.".

11. Considering the nature of the dispute and the fact that the parties have amicably entered into a settlement and decided to move forward in life, this Court is of the opinion that the present case is fit to exercise jurisdiction under Section 528 of BNSS as no purpose would be served by keeping the dispute alive and continuance of the proceedings would amount to abuse of the process of Court.

12. Accordingly, the impugned FIR No. 06/2018 and all consequential proceedings arising therefrom are hereby quashed.

13. In view of the foregoing, as per the terms of the settlement agreement, the Registry is directed to release the amount of INR 2,00,000/- deposited in BAIL APPLN. 1788/2018 along with interest accrued, if any, in favour of Respondent No. 2.

14. The parties are expected to abide by the terms of the settlement.

15. It is clarified that the settlement shall not impact the rights of minor child.

16. The present petition is allowed in the aforesaid terms.

SANJEEV NARULA, J JULY 3, 2025 d.negi This is a digitally signed order.

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